

		At issue is the declaration of Defendant’s owner, Dave Hanson. The declaration was filed in response to the Court’s questions about how Defendant’s finances affected the settlement value. The general state of Defendant’s finances is known insofar as the public record reflects that the settlement was driven in large part by those finances. However, the material to be sealed includes specific financial information from profit and loss statements and the like. The Court finds Hanson’s declaration contains details of Defendant’s finances that are absent from the public record. The Court further finds these details implicate Defendant’s right to privacy in its financial affairs in a manner sufficient to support sealing the record. Should the record not be sealed, that overriding interest would be prejudiced, as the public would have access to detailed information about Defendant’s financial condition, in contrast to the general information already in the record. The sealing sought by Defendants is narrowly tailored. No means other than sealing will permit this private financial information to remain private. The motion is therefore granted.
12	Muhlhauser Steel, Inc. vs. 17422 Derian Irvine Apartments LLC 2025-01515505	Defendant’s Demurrer to Amended Complaint VACATED
13	Southern California Pizza Wage and Hour Cases JCCP 4725	Plaintiff's Motion for Leave to File Amended Complaint Defendant's Motion to Dismiss Defendant Southern California Pizza Company’s motion to dismiss the claims of Plaintiffs Kevin Deanda, Uriel Hernandez, and Carolina Huerta (through her successors-in-interest) GRANTED. Defendant’s unopposed request for judicial notice (ROA 1634) is GRANTED. Given this ruling, Huerta’s motion for leave to file a third amended complaint is DENIED. <u>GROUND</u>S FOR RULING I. <u>Brief Background</u> After nearly 14 years of litigation in this coordinated and consolidated proceeding, Plaintiffs’ consolidated claims remain. Following a series of class certification rulings, dispositive motion rulings, and trips to the Court of Appeal, most other named plaintiffs settled their claims on an individual basis. (Rene Najarro did not settle. The Court previously granted Defendant’s motion to dismiss Najarro’s claims. ROA 1611) As discussed in more detail below, Plaintiffs reached settlements in principle with Defendant, but the parties never executed formal settlement agreements. Defendant now moves to dismiss Plaintiffs’ claims for failure to bring them to trial within the time allowed by statute. II. <u>Discussion</u>

	A. <u>Governing Law</u> “An action shall be brought to trial within five years after the action is commenced against the defendant.” (CCP § 583.310.) “An action shall be dismissed by the court . . . on motion of the defendant, after notice to the parties, if the action is not brought to trial within the time prescribed in this article. (CCP § 583.360(a).) “The requirements of this article are mandatory and are not subject to extension, excuse, or exception except as expressly provided by statute.” (CCP § 583.360(b).) “While [application of the five-year rule] brings an end to [a] plaintiff’s suit, that is what the five-year statute is designed to do. The five-year rule is mandatory and dismissal for noncompliance is required.” (<i>Gaines v. Fidelity National Title Ins. Co.</i> (2016) 62 Cal.4th 1081, 1105.) B. <u>Effect of Settlements in Principle</u> Defendant contends the deadline to bring this case to trial was February 17, 2026. The Court previously agreed with Defendant’s analysis in the context of Najarro’s since-dismissed claims. (ROA 1611) Plaintiffs here do not challenge the specifics of Defendant’s calculations. Instead, they argue the time the case was settled in principle should be considered time in which “[b]ringing the action to trial, for any other reason, was impossible, impracticable, or futile.” (CCP § 583.340(c).) Such time is excluded from the five-year rule. (<i>Ibid.</i>) 1. <u>Relevant Factual Background</u> a. <u>Huerta</u> On January 8, 2026, Huerta reached a settlement in principle with Defendant. Defendant’s settlement offer, which Huerta’s counsel accepted on behalf of her successors, “contemplate[d] a standard long-form settlement agreement with a general release of all known and unknown claims and a standard confidentiality provision.” (Frei-Pearson Decl. (ROA 1653) Ex. 2.) The parties worked together to prepare a stipulation for Huerta’s successors to formally substitute into the case. The Court approved the stipulation on February 20, 2026. (ROA 1599.) On March 6, 2026, the Court granted Defendant’s motion to dismiss Plaintiff Najarro’s claims pursuant to CCP § 583.310. Although counsel for Huerta, Deanda and Hernandez were not present at that hearing, they were served with notice of that ruling on March 10, 2026. (ROA 1614) On March 9, 2026, defense counsel sent a draft settlement agreement to Huerta’s counsel. (Supp. Parvaresh Decl. (ROA 1673) Ex. C.) Defense counsel followed up by email on March 31. Huerta’s counsel responded that it might take a week to finalize the agreement. There was no further action until April 22, when defense counsel followed up a second time. (Supp. Pavaresh Decl. Ex. D.) Another week later, on April 29, Huerta’s counsel replied with two “substantive changes” to the settlement agreement. (Supp. Pavaresh Decl. Ex. E.) Relevant here, Huerta’s counsel sought to have the entire settlement amount treated as
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	reimbursement for expenses rather than wages owed, meaning the proceeds would not be taxable. (<i>Ibid.</i>) This proposed change was unacceptable to Defendant, as Huerta’s claims included claims for unpaid wages. (Supp. Paravesh Decl. ¶ 6.) Defendant concluded the parties remained far apart on material terms of the settlement and decided to discontinue settlement discussions. (<i>Ibid.</i>) On May 6, the Court held a hearing on an OSC re: dismissal of settled case. Huerta’s counsel did not appear. At the hearing, defense counsel informed the Court that the time to bring Huerta’s claims to trial expired on February 17. Defendant asked the Court to dismiss her claims with prejudice. The Court told Defendant to file a noticed motion. On May 15, Defendant gave notice as ordered by the Court, with the notice emailed to Huerta’s counsel. (Supp. Paravesh Decl. Ex. 1.) On June 2, several weeks after receiving notice that Defendant had asked the Court to dismiss her claims with prejudice, Huerta’s counsel emailed defense counsel a signed settlement agreement. Defense counsel replied the same day, stating that Defendant intended to pursue dismissal as stated in the May 15 notice. (Frei-Pearson Decl. Ex. 6.) b. <u>Deanda and Hernandez</u> On January 12, 2026, Deanda and Hernandez reached a settlement in principle with Defendant. (Bitton Decl. (ROA 1646) ¶ 3.) The next day, Defendant filed a notice of settlement. (ROA 1556.) Per the notice, the parties “reached a settlement in principle” and were “finalizing the settlement agreements.” Plaintiffs would request dismissal of their claims with prejudice “after the settlement agreements ha[d] been executed by the respective Parties.” (<i>Ibid.</i>) On January 26, 2026, defense counsel sent Deanda and Hernandez’s counsel draft settlement agreements. (Bitton Decl. Ex. 4.) A month passed. On February 26, 2026, Deanda and Hernandez’s counsel replied with proposed changes. (Bitton Decl. Ex. 5.) On March 3, 2026, while Deanda and Hernandez’s counsel was traveling abroad, defense counsel replied with concerns about the payment timing and dispute resolution terms proposed by Deanda and Hernandez. (Bitton Decl. ¶ 9 & Ex. 6.) On March 6, a staff member at Deanda and Hernandez’s counsel’s sent signed W-9s to defense counsel. (Bitton Decl. Ex. 8.) Defense counsel replied to this staff member on March 9, following up on the concerns raised in the March 3 email. (Bitton Decl. Ex. 9.) Deanda and Hernandez’s counsel testifies that he attempted to reach Hernandez to discuss these issues, but Hernandez was unavailable for roughly three weeks. (Bitton Decl. ¶ 14.) In any event, on March 31, defense counsel sent a follow-up email to the staff member who had previously sent the W-9s. Unbeknownst to defense counsel, this staff member had left the firm; however, Deanda and Hernandez’s counsel was copied on the email, which he admits. (Bitton Decl. ¶ 15 & Ex. 10.) He does not testify that he made any effort to respond. Defense counsel,
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	still unaware of the staff member’s departure, followed up with a further email on April 22. (Bitton Decl. Ex. 11.) Another staff member promptly responded that the first staff member had left the firm and stated she would check on the matter. (Bitton Decl. Ex. 12.) Roughly two weeks passed with no word from Deanda and Hernandez’s counsel. On May 4, defense counsel reached out to the second staff member to follow up. (Bitton Decl. Ex. 13.) Again, Deanda and Hernandez’s counsel was copied on this email. (<i>Ibid.</i>) As discussed above in connection with Huerta, the Court held a hearing on May 6 on an OSC re: dismissal of settled case. Like Huerta’s counsel, Deanda and Hernandez’s counsel did not appear. The Court-ordered notice was also sent to Deanda and Hernandez’s counsel on May 15. (Supp. Paravesh Decl. Ex. I.) On June 11, nearly a month after receiving notice that Defendant had asked the Court to dismiss their claims with prejudice, Deanda and Hernandez’s counsel asked defense counsel to forward a revised agreement, addressing the concerns raised back in March, for his clients’ signatures. (Bitton Decl. Ex. 15.) On June 27, Deanda and Hernandez’s counsel followed up about the status of the final agreement. (Bitton Decl. Ex. 16.) On June 29, defense counsel replied that, as stated in the May 15 notice, it had decided to move forward with dismissal. (Bitton Decl. Ex. 17.) Despite having received notice of what happened at the May 6 hearing, Deanda and Hernandez’s counsel claims he was never informed that Defendant “would be abandoning the settlement.” (Bitton Decl. ¶ 25.) 2. <u>Analysis</u> As the documents attached to the parties’ supporting declarations make clear, the parties reached settlements <i>in principle</i>. When parties have “a settlement ‘in principle,’” it means “they ha[ve] yet to fix its exact terms.” (<i>Levitz v. The Warlocks</i> (2007) 148 Cal.App.4th 531, 534-535.) A settlement in principle “is not a settlement at all.” (<i>Id.</i>, at p. 535.) Upon receipt of draft settlement agreements from Defendant, Huerta’s counsel and Deanda and Hernandez’s counsel both provided substantive suggested revisions to material terms of the agreement. The parties may have agreed on the settlement amounts, but this isn’t the same as agreeing on the exact terms of the settlement agreements. Plaintiffs cite a handful of cases holding a settlement can make going to trial impossible, impracticable, or futile. But in all these cases, the settlement was binding, either because it was reduced to a signed agreement (<i>Schiro v. Curci</i> (1990) 220 Cal.App.3d 840; <i>Brown & Bryant, Inc. v. Hartford Accident & Indemnity Co.</i> (1994) 24 Cal.App.4th 247; <i>Seto v. Szeto</i> (2022) 86 Cal.App.5th 76), or because its terms were recited on the record in open court (<i>Gorman v. Holte</i> (1985) 164 Cal.App.3d 984; <i>Canal Street, Ltd. v. Sorich</i> (2000) 77 Cal.App.4th 602.) Here, there was a settlement in principle, which is not a settlement at all. Because there was no settlement, the time the case had settled in
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	principle is not excluded from the time in which the case had to be brought to trial. Accordingly, Plaintiffs’ claims must be dismissed. C. <u>CCP Section 583.350</u> In a last-ditch effort to salvage their case, Plaintiffs cite CCP § 583.350 which provides a six-month window to bring a case to trial once a tolling period ends. Here, the tolling period ended on February 24, 2025 (ROA 1611), far more than six months ago. Because the Court concludes that the 2026 announcements of settlements in principle did not further toll the 5-year statute, § 583.350 is inapplicable. D. <u>Equitable Estoppel</u> Alternatively, Plaintiffs argue Defendant should be equitably estopped from invoking the five-year rule because (1) it repeatedly followed up about the status of the settlement agreement without mentioning the deadline for bringing the case to trial, which had already passed, and (2) it represented to the Court that the parties had reached settlements. “Equitable estoppel requires that: (1) the party to be estopped was aware of the operative facts and either intended that its act or omission be acted upon, or acted in such a way that the party asserting estoppel rightfully believed it was intended; and (2) the party asserting estoppel was unaware of the facts and relied on the other party's conduct to its detriment. [Citation.] The party asserting estoppel has the burden to establish these elements.” (<i>Gaines v. Fidelity National Title Ins. Co.</i> (2016) 62 Cal.4th 1081, 1097.) <i>Gaines</i> is instructive. There, the parties agreed to a partial stay of the action for 120 days to allow for mediation. The case failed to settle. It was eventually dismissed under the five-year rule. The plaintiff argued the 120-day stay shouldn’t have counted against the time to bring the case to trial. The California Supreme Court disagreed. Alternatively, the plaintiff argued the defendant should have been estopped from claiming the deadline wasn’t tolled for 120 days. Again, the California Supreme Court disagreed. It explained: “The parties' communications regarding the stay explicitly set forth their expectations. Nowhere did those communications reflect an understanding that the five-year statute would be tolled.” (<i>Id.</i>, at p. 1098.) So too here. As Deanda and Hernandez admit, “Not one of these communications mentioned the five-year deadline, suggested that time was running short, or indicated that Defendant viewed the matter as anything other than a settled case awaiting execution.” (Deanda and Hernandez Opp. at p. 8.) Defendant never affirmatively misled Plaintiffs about the five-year deadline. At most, it omitted to inform Plaintiffs about the five-year deadline. But Defendant had no duty to inform Plaintiffs of the deadline. To the contrary, Plaintiffs bore the burden of ensuring the case was brought to trial in a timely fashion: “The burden is upon the plaintiff to call to the attention of the court the
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		necessity for setting the trial for a time within the period fixed by section 583. This rule is well founded: the burden of keeping track of the relevant dates should properly fall on plaintiffs, because it is they who have the interest, and the statutory duty under section 583.310, to timely prosecute their cases.” (<i>Howard v. Thrifty Drug & Discount Stores</i> (1995) 10 Cal.4th 424, 434 (internal quotations omitted).) Defendant’s silence doesn’t absolve Plaintiffs of their duty to ensure their claims are timely tried. Moreover, the facts don’t support Plaintiff’s seeking equitable relief for another reason. For about two months after the dismissal of Najarro’s case, Defendant apparently was willing to honor the settlements in principle even though the five-year deadline had expired on February 17, 2026, and even though the Court already had dismissed Najarro’s case on the same basis. Plaintiffs’ counsel was on notice of that dismissal yet took no steps to protect their clients’ positions. The lack of action in the face of that notice undercuts any request for equitable relief. III. <u>Conclusion</u> For these reasons, Defendant’s motion is granted. Huerta, Deanda and Hernandez’s claims are dismissed with prejudice. As such, Huerta’s motion for leave to file a third amended complaint is denied.
14	Roe 26 A.B. vs. Anaheim Union High School District 2025-01503960	Gizem Gures's Motion to Be Relieved as Counsel of Record Slater, Slater & Schulman LLP moves to be relieved as counsel for Plaintiff John Roe 34 R.P. The motion is GRANTED. Counsel has met the requirements of CCP § 284 and CRC 3.1362. The order will be effective upon the filing of proof of service on the client.
15	William Thompson, derivatively on Behalf of The Ensign Group, Inc., vs. Keetch 2026-01584212	Motion for James W. Ducayet to Appear Pro Hac Vice The unopposed application of James W. Ducayet for admission pro hac vice is GRANTED. The moving papers comply with the requirements of CRC 9.40.
16	Vidal vs. The Winery LP 2025-01456888	Motion for Sammy Y. Sugiura to Appear Pro Hac Vice The unopposed application of Sammy Y. Sugiura for admission pro hac vice is DENIED WITHOUT PREJUDICE. The moving papers contain no proof that Sugiura has paid the application fee required by CRC 9.40(e). Paragraph 8 of Sugiura’s declaration says payment “will be” made, but there is no proof payment was in fact made to the State Bar.